

U.P. krishi Utpadan Mandi (Bisawan Sanshodhan) Niyamawali, 2016

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Rule U-P-KRISHI-UTPADAN-MANDI-BISAWAN-SANSHODHAN-NIYAMAWALI-2016 of 2016

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No. 13/2016/1404/80-1-2016-78-2014, dated 31.5.2016, published in the U.P. Gazette, Extraordinary, Part 4, Section (Kha), dated 31.5.2016, pp. 2-3. - In exercise of the powers under Section 40 of the Krishi Utpadan Mandi Adhiniyam, 1964 (U.P. Act No. XXV of 1964) read with Section 21 of the Uttar Pradesh General Clauses Act, 1904 (U.P. Act No. 1 of 1904), the Governor is pleased to make the following rules with a view to amending the Uttar Pradesh Krishi Utpadan Mandi Niyamawali, 1965 -

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh krishi Utpadan Mandi (Bisawan Sanshodhan) Niyamawali, 2016.

(2)

They shall come into force with effect from the date of their publication in the Gazette.

2.

Amendment of Rule 2.

- In the Uttar Pradesh Krishi Utpadan Mandi Niyamawali, 1965 hereinafter referred to as the said rules, in Rule 2, in sub-rule (1) after clause (xix) the following clause shall be inserted, namely -

"(xix) "Online Market" means a market where the trade of notified agricultural produce takes place on an electronic platform."

3.

Insertion of Rule 76-A.

- In the said rules after 76 the following rule shall be inserted, namely -

"Online market 76-A. - (1) The Director of Mandis may specify commodities and markets where the sale price of such commodities in such market area shall be determined by an electronic platform as the Director may direct in this behalf.

(2)

The Director may specify one or more of the following in respect of commodities and markets specified under sub-rule (1), namely -

(i)

quality testing of commodities, grading, quality certification and standardization of commodities;

(ii)

weighing of commodities before or after the sale;

(iii)

storing of commodities in warehouses in the market area and sale of such stored commodities;

(iv)

facilitation of collateral financing and borrowing against warehouse receipts;

(v)

payment of price of the commodities by traders;

(vi)

procurement and disposal of commodities through the electronic platform;

(vii)

compensation to the seller in case of default by the trader or the commission agent;

(viii)

market intelligence reports;

(ix)

any other matter, which in the opinion of the Director is necessary for giving effect to sale of commodities through the electronic platform.

(3)

The Director may issue guidelines for settlement of disputes in respect of transactions in the markets specified under sub-rule (1) and market committees for online markets shall follow these guideline while settling any disputes referred to it."

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